Responsible Office: Human Resources
Date Reviewed (no substantive changes): 10/22/2024

Termination of Employment of Classified Employees

Resignation

Classified employees desiring to voluntarily resign their employment relationship are urged to notify the University at least two weeks in advance. Such notice should preferably be given in writing to the immediate supervisor and the department head. The notice should be addressed to the President and forwarded to the Human Resources Office for processing. Proper notice allows the University time to prepare final payroll documents and to calculate any terminal leave to which the employee may be entitled. Without proper notice, employees who are terminating their employment may have to wait an additional pay period to receive their last paycheck.

Retirement

Employees who are planning to retire should notify the Human Resources Office three (3) months in advance. This will allow ample time to file the application for retirement and other supporting documentation. Employees eligible for Social Security should contact their local Social Security Office at least three months in advance of their expected retirement date to allow for processing of the related Social Security documents.

Temporary Appointments

All temporary appointments (intermittent, job appointments, probational, and provisional appointments) are on an "at will" basis and may be terminated at any time with no reason given.

Non-disciplinary Removal

According to Civil Service Rule 12.6 permanent employees may also be non-disciplinarily terminated.

Rule 12.6 (a), “An employee may be non-disciplinarily removed under the following circumstances:

1. When, on the date the notice required by Rule 12.7 is mailed, hand delivered, or orally given, the employee is unable to perform the essential functions of his job due to illness or medical disability and has fewer than eight hours of sick leave. An employee removed under this provision shall be paid for all remaining sick leave.
2. When, after the employee has been given written notice that his attendance requires improvement and a copy of this rule, an employee has seven or more unscheduled absences during any consecutive twenty-six-week period. The employee shall also be given written notice each time he incurs a sixth unscheduled absence during a consecutive twenty-six-week period. An unscheduled absence occurs when an employee is absent from work without having obtained approved leave prior to the absence. Approval of leave, after the fact, to cover an unscheduled absence shall not prevent the absence from being considered unscheduled. A continuous absence for the same reason is one unscheduled absence, regardless of its duration.
3. When, as a result of conduct that was not work related, the employee fails to obtain or loses a license, commission, certificate or other accreditation that is legally required for the job.
4. When the employee holds more than one position in the state service and the multiple employment causes an employing agency to be liable for overtime payments under the Fair Labor Standards Act and, after having been provided the opportunity to do so, the employee has refused to resign from one of the positions.
5. When there is cause for dismissal, but the cause is not the employee’s fault.

Involuntary Separation

Permanent classified employees may also be terminated “for cause” or in an approved lay off in accordance with Civil Service Rules. Although it is hoped the relationships with employees are long-term and mutually rewarding, the University reserves the right to terminate employment relationships in accordance with applicable Civil Service Rules.

[End]